

ORDINANCE NO. 594

AN ORDINANCE TO AMEND ORDINANCE 372, 436, 359, AND 447 FOR UNIFORM MANUFACTURED AND MOBILE HOME REGULATIONS FOR THE CITY OF RECTOR, ARKANSAS, AND FOR OTHER PURPOSES

WHEREAS, the City of Rector recognizes the importance of providing safe, affordable, and attractive housing options, including manufactured homes; and

WHEREAS, it is the desire of the Planning Commission and City Council to ensure that all manufactured housing installed within the City conforms to modern standards of appearance and safety consistent with HUD regulations; and

WHEREAS, the City further desires to simplify, clarify, and unify its manufactured home regulations for both R-1 and R-2 residential zoning districts to ensure fairness, enforceability, and consistency; and

WHEREAS, a public hearing was posted and was held with the Planning Commission to allow public input, and

WHEREAS, the Planning Commission has made recommendations to the City Council for modification of the existing ordinance.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF RECTOR, ARKANSAS:

Section 1. The City Council of the City of Rector Arkansas shall establish Article 5-7

A new Article 5-7 of the Zoning Regulations of the City of Rector is hereby adopted to read as follows:

Article 5-7: Manufactured and Mobile Home Regulations

- A. **Purpose** To establish uniform standards for the placement, design, and regulation of manufactured and mobile homes within all zoning districts of the City of Rector, Arkansas, in accordance with the definitions contained in Section 2, Article 2-1 of these regulations.
- B. **Permitted Units** Only manufactured homes with valid HUD verification shall be permitted. No manufactured home shall be placed unless it was constructed within twenty (20) years of the date of permit application, as verified by its HUD verification. Mobile homes, as defined by Section 2, Article 2-1 of these regulations, shall be permitted only within approved mobile home parks.

C. Installation Standards All manufactured homes must:

1. Be a minimum of 14 feet in width and 750 square feet in enclosed floor area.
2. Be supported by a permanent perimeter foundation constructed of concrete or masonry, designed to transfer all loads to the ground, and extending below the frost line. The use of block piers, runners, or other temporary systems shall not satisfy this requirement.
3. Have all wheels, axles, and towing mechanisms removed.
4. Have utility hookups (water, sewer, electricity) completed and inspected.
5. Be roofed with residential-style material and have a minimum roof pitch of 3:12.
6. Have exterior siding made of vinyl, wood, fiber cement, or other materials customarily used in site-built housing.
7. Be fully installed, including permanent foundation, removal of wheels and towing apparatus, and utility hookups, within 60 days of the home being delivered to the site.
 - a. The Code Enforcement Officer may grant one extension of up to 30 additional days upon written request showing good cause, including weather delays, contractor availability, or other circumstances beyond the applicant's control.
 - b. Failure to complete installation within the required time shall constitute a violation of these regulations and be subject to enforcement under Article 7-3.

D. Permitting Requirements

1. A Certificate of Zoning Compliance and Foundation Permit must be obtained prior to installation.
2. Permit applications must include:
 - a. Site plan with setbacks.
 - b. Photographs or elevation drawings.
 - c. Foundation details.
 - d. A copy of the approved manufacturer instructions, which will be used for installation purposes.
 - e. Proof of HUD certification label affixed to the exterior of the home.

E. Petition Required for Manufactured Home Placement

1. All manufactured homes proposed to be placed on a private lot within any zoning district, with the exception of Mobile Home Parks, shall require a petition for placement to be submitted and approved prior to installation.
2. The petition must include:
 - a. A written request to place a manufactured home on the parcel.
 - b. Photographs of the proposed unit.
 - c. A site plan showing setbacks, access, and placement.
 - d. Proof of HUD certification, as defined below.
 - e. Written consent from all adjacent property owners, as defined below.
3. Proof of HUD verification:
 - a. Every manufactured home must display an intact HUD verification label affixed to the exterior of the unit.
 - b. If the HUD label has been removed, defaced, or is otherwise not visible, the applicant shall provide verification from HUD or the Institute for Building Technology and Safety (IBTS) that the home was constructed in compliance with federal standards.
 - c. No manufactured home shall be permitted without either (1) a visible HUD label, or (2) official written verification from HUD/IBTS.
4. Adjacent property owners shall include all owners of parcels that abut or touch the subject parcel on any side, including across any public street, alley, or right-of-way.
5. If the petition is complete and compliant with all provisions of this Article, the Code Enforcement Officer may approve the placement.
6. If the unit does not meet the requirements of this Article, the applicant may seek a variance through the Board of Zoning Adjustment.
7. No manufactured home shall be installed, delivered, or connected to utilities prior to receiving approval under this section.

F. Enforcement Any installation or relocation of a manufactured home in violation of these standards shall be subject to enforcement under Article 7 of these regulations.

G. Supersession This article shall govern the regulation of manufactured and mobile homes in all zoning districts. Any other provision of these zoning regulations in conflict with this article is hereby superseded.

Section 2. The City Council of the City of Rector shall repeal Article 2-1.C of Ordinance 372 and the following language shall be added at the end of Article 5-2.B of Ordinance 436

“Manufactured homes shall be permitted only in accordance with Article 5-7 of these regulations.”

All other references to manufactured homes within Article 5-2 of Ordinance 436 are hereby repealed.

Section 3. The City Council of the City of Rector shall add the following language at the end of Article 5-3.A.11 of Ordinance 372:

“Manufactured homes shall be permitted only in accordance with Article 5-7 of these regulations.”

All other references to manufactured or mobile homes in Article 5-3.B are hereby repealed.

Section 4. The City Council of the City of Rector shall repeal subsection C of Article 2-1 of Ordinance 372.

Its content is now incorporated into Article 5-7 adopted herein.

Section 5. Severability

That the provisions of this Ordinance are separable and if a section, phrase or provision shall be declared invalid, such declaration shall not affect the validity of the remainder of the Ordinance.

Section 6.

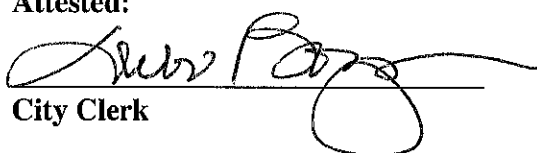
That all ordinances and resolutions and parts thereof in conflict herewith are hereby repealed to the extent of such conflict.

EMERGENCY CLAUSE

It is hereby declared that an emergency exists to preserve the public peace, health, and safety of the citizens of Rector, Arkansas, by ensuring consistent and enforceable housing regulations. Therefore, this ordinance shall be in full force and effect upon its passage and publication.

PASSED AND APPROVED this 13th day of November, 2025.

By: 
Mayor Shawn Brandon

Attested:

City Clerk